

Rohit Laxmidas Sonkawde And Others vs The State Of Maharashtra And Another on 1 March, 2022

Author: V.K. Jadhav

Bench: V.K. Jadhav

(1)

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IN THE HIGH COURT OF JUDICATURE OF BOMBAY
BENCH AT AURANGABAD

963 CRIMINAL APPLICATION NO.3048 OF 2021

ROHIT LAXMIDAS SONKAWDE AND OTHERS
VERSUS
THE STATE OF MAHARASHTRA AND ANOTHER

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Mr. D.A. Mane, Advocate holding for
Mr. Kiran T. Jamdar, Advocate for the applicants.
Mr. S.J. Salgare, A.P.P. for respondent No. 1 - State.
Mr. S.N. Lale, Advocate for respondent No. 2.

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CORAM : V.K. JADHAV AND
SANDIPKUMAR C. MORE, JJ.

DATE : 01-03-2022.

ORDER :

1. Heard finally with consent of the parties at the admission stage.

2. The applicants - original accused in connection with Crime No. 135/2019 registered with Vivekanand Chowk Police Station, Latur for the offences punishable under Sections 498-A, 406, 323, 504, 506 read with Section 34 of the Indian Penal Code are seeking quashing of the F.I.R., so also the proceedings vide R.C.C. No. 104/2019 pending before the learned Judicial Magistrate, First Class at Latur in connection with the aforesaid crime, on the ground that the parties have arrived at amicable settlement.

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3. Learned Counsel for the applicants and learned Counsel for respondent No. 2 submit that applicant No. 1 Rohit (husband) and respondent No. 2 Nisha (wife) have arrived at amicable settlement due to intervention of the respectable members of the society. They have, thus, mutually decided to get separated. Accordingly, they have filed petition No.F-156/2021 before the Family Court,

Latur for divorce on mutual consent in terms of the provisions of Section 13-B of the Hindu Marriage Act. Learned Counsel for respondent No.2 submits that respondent No. 2 - wife has also filed affidavit-in-reply to that effect and also annexed copy of the petition bearing No.F-156/2021. Learned Counsel for respondent No. 2 submits that the applicant No.1 husband and respondent No. 2 wife are not able to live together. Applicant No.1 has also deposited Rs. 16,51,000/- (Rupees Sixteen Lakh Fifty One Thousand) through Demand Draft on 08.10.2021 before the Family Court and it is agreed between the parties that the said amount is towards full and final settlement amount which includes all claims present and future of respondent No. 2 against applicant No.1 herein and his family members. It is further agreed between them that respondent No. 2 shall withdraw the said amount after withdrawal of all the cases and the decree of divorce is passed by the Family Court. Learned Counsel submits that respondent No. 2 is not interested in prosecuting her complaint in respect of the present crime.

4. We also heard learned A.P.P. for the respondent - State.

5. We have carefully gone through the allegations made in the complaint and also perused the charge-sheet. We have also carefully perused affidavit-in-reply filed by respondent No. 2 and copy of the petition filed by the parties before the Family Court at Latur seeking divorce by mutual consent in terms of the provisions of Section 13-B of the Hindu Marriage Act. It appears that the parties have arrived at amicable settlement due to intervention of the respectable members of the society. They find it difficult to reside together for the rest of the life and thus mutually agreed to end their matrimonial ties. Even the applicant No. 1 and respondent No. 2 have approached the Family Court by filing petition No. F-156/2021 for mutual divorce in terms of the provisions of Section 13-B of the Hindu Marriage Act.

6. In the case of Gian Singh vs. State of Punjab and others, reported in (2012) 10 SCC 303, the Supreme Court in para 48 has quoted para 21 of the judgment of the five-Judge Bench of the Punjab and Haryana High Court delivered in Kulwinder Singh v. State of Punjab (2007) 4 CTC 769. The five-Judge Bench of the Punjab and Haryana High Court, in para 21 of the judgment, has framed the guidelines for quashing of the criminal proceeding on the ground of settlement. Para 21 of the said case of Kulwinder Singh is reproduced by the Supreme Court in para 48 of the judgment in Gian Singh. Clause 21(a) which is relevant for the present discussion reads as under :

"21. (a) Cases arising from matrimonial discord, even if other offences are introduced for aggravation of the case."

7. In para No.61 of the case Gian Singh (supra), the Hon'ble Supreme Court has made the following observations:-

"61. The position that emerges from the above discussion can be summarised thus:

the power of the High Court in quashing a criminal proceeding or FIR or complaint in exercise of its inherent jurisdiction is distinct and different from the power given to

a criminal court for compounding the offences under Section 320 of the Code. Inherent power is of wide plenitude with no statutory limitation but it has to be exercised in accord with the 963 criappln-3048.2021.odt guideline engrafted in such power viz. : (1) to secure the ends of justice, or (ii) to prevent abuse of the process of a court. In what cases power to quash the criminal proceeding or complaint or FIR may be exercised where the offender and the victim have settled their dispute would depend on the facts and circumstances of each case and no category can be prescribed. However, before exercise of such power, the High Court must have due regard to the nature and gravity of the crime. Heinous and serious offences of mental depravity or offences like murder, rape, dacoity, etc. cannot be fittingly quashed even though the victim or victim's family and the offender have settled the dispute. Such offences are not private in nature and have a serious impact on society. Similarly, a compromise between the victim and the offender in relation to the offences under special statutes like Prevention of Corruption Act or the offences committed by public servants while working in that capacity, etc; cannot provide for any basis for quashing criminal proceedings involving such offences. But the criminal cases having overwhelmingly and predominatingly civil favour stand on a different footing for the purposes of quashing, particularly the offences arising from commercial, financial, mercantile, civil, partnership or such like transactions or the offences arising out of matrimonial relating to 963 criappln-3048.2021.odt dowry, etc. or the family disputes where the wrong is basically private or personal in nature and the parties have resolved their entire dispute. In this category of cases, High Court may quash criminal proceedings if in its view, because of the compromise between the offender and the victim, the possibility of conviction is remote and bleak and continuation of the criminal case would put the accused to great oppression and prejudice and extreme injustice would be caused to him by not quashing the criminal case despite full and complete settlement and compromise with the victim. In other words, the High Court must consider whether it would be unfair or contrary to the interest of justice to continue with the criminal proceeding or continuation of the criminal proceeding would tantamount to abuse of process of law despite settlement and compromise between the victim and the wrongdoer and whether to secure the ends of justice, it is appropriate that the criminal case is put to an end and if the answer to the above question(s) is in the affirmative, the High Court shall be well within its jurisdiction to quash the criminal proceeding."

8. In the instant case, we are satisfied that the parties have arrived at amicable settlement voluntarily. Even care has also been taken to grant certain lump-sum amount 963 criappln-3048.2021.odt towards permanent alimony of respondent No. 2. The parties have already approached to the Family Court for decree of divorce on mutual consent.

9. In view of the above and in terms of the ratio laid down by the Supreme Court in the above-cited case, we proceed to pass the following order.

ORDER

(i) Criminal Application is hereby allowed in terms of praler clause [C].

(ii) Criminal Application is accordingly disposed of.

(SANDIPKUMAR C. MORE, J.) (V.K. JADHAV, J.) VD_Dhirde